

## An Analysis of Herbert Marcuse's *Repressive Tolerance*: Free Speech Isn't Meaningful Speech

Written in 1965, Herbert Marcuse's *Repressive Tolerance* is more than simply a political critique, it was a deep dive into European Western industrial societies going into the new millennia. It was an examination of a world more divided than ever before, but rich with the possibility for change. It was for this very state of the world that critics and members of the New Left saw this piece as a reason for disrupting or destroying discussion within the marketplace of ideas. They argued that in such tumultuous circumstances, it was counterproductive to be worrying about crossing boundaries and that dangerous ideas could be shut down meritocratically under a universal form of tolerance. However, Marcuse fundamentally rejects this appeal towards the universal. Not only that, but he also believes there are situations where the total withdrawal of tolerance, that is, a practice of intolerance, is justified. To understand his reasoning requires one to look past the innocent visage of right and wrong that we are presented to since the moment of genesis, and instead look at the world through the lens of tolerance as a mechanism with intent, as a means rather than an end in a world where the ends are discriminatory and oppressive. As to who ought to be the champions of Marcuse's liberating intolerance, context suggests sympathies for the revolutionary subjects of the third world as ideological comrades of the Left. On top of that, the state of American politics in the 1960s left a lot to be said about marginalization across the dynamic of class. In totality, Marcuse found that both attitudes were rooted in the same subversive dominance of repressive tolerance and resulted in the same subjugation of intellectual rebellion.

Marcuse begins by declaring tolerance an ideal, an end in itself that is only achievable in a world with social conditions that allow for equal representation of all opinions. Unfortunately,

that is simply not the case in modern societies with rampant propaganda and one-sided conversations. Ironically, he writes where the epitome of tolerance is an elimination of violence altogether (Marcuse, 33) and the reduction of suppression to the point needed for protecting people from aggression and cruelty, thus creating a humane society, it is, in fact, those very forces of violence and suppression that keep our progress in a stasis. Even more, it is the fact that those forces can only operate under our current understanding of tolerance, which in reality is a guise for manipulation. As a result, the supposed search for the truth that the free speech ideologues wanted is nothing but delusions of grandeur. Where Marcuse's critics see rational debate, he understands it correctly to be persuasion in the interests of a hegemony (Marcuse, 32). As some examples, in the prevention of nuclear warfare, the police action against deviance, and the pacification of anti-colonial uprisings, violence and suppression is like bread and butter. They are so casually practiced, promoted, and protected that there is no difference in how they are seen by democratic and authoritarian governments (Marcuse, 34). To make matters worse, the people under these governments are taught to preserve these practices as necessary for maintenance of the status quo. Again, this matter is not mutually exclusive between democratic or authoritarian governments, which begs the age-old question on democratic theory. whether or not these European Western industrial societies can even qualify as democracies under an all-encompassing system of repressive tolerance.

Subsequently, tolerance has been extended to the very things that it once hoped to destroy in the pursuit of a better world, one without terror and anguish. Instead, we are forced to tolerate policies and modes of behavior which are intolerable (Marcuse, 34). To go more in depth on this transformation of tolerance, Marcuse describes that while it has quietly subsided in the face of oppositional politics, it has been made inescapable with respect to what the system considers the

norm. The best way for me to see it is by drawing parallels to Noam Chomsky's idea of manufacturing consent. To elaborate, the closest thing we have to an all-knowing, omnipresent entity in the age of the internet is the mass communication media of the United States, which is closely intertwined with the business elite and the political machine. As a consequence, the media is a powerful institution that carries out a function of propaganda, internalized expectations, and self-censorship, all without the need for explicit coercion. For comparison, Marcuse argues that tolerance is turned from an active state into a passive one, from one that involves a proactive constituency to one that adopts laissez-faire attitudes toward constituted authorities. In turn, people who tolerate the government, essentially everyone living under the social contract, must unknowingly tolerate what the government is complaisant to, the opposition within the framework constructed by constituted authorities (Marcuse, 34). Hence, what was once considered radically evil now takes form as something good because it is seen as only a part of the perfect, final shape. In other words, if we are told that a horrible idea is nothing more than process on the goal to prosperity, then maybe it is not so bad of an idea (Marcuse, 34). Again, under the passive framework of tolerance, one doesn't necessarily have to agree with the opposition, but it would be considered an overstep to do anything beyond argumentation.

In practice, things such as the toleration of widespread misinformation, which affects children and adults alike, tolerance of the indoctrination and preparation of militant ideas, and the tolerance of overt lies regarding waste, commodification, and the market are not simply mishaps in an otherwise flawless system, they are all it was ever meant to be (Marcuse, 34). For Marcuse himself, it would be wrong to believe that the rise of Nazism under the protections of the democratic constitution of the Weimar Republic was a matter of oversight (Marcuse, 32). Instead, the existing system was made to be negligent of growing antisemitism within a

disgruntled, post-Versailles Germany. Thus, it would be unproductive to limit one's criticism to a moral attack on the evils of Nazism in action. Instead, one must begin to question what institutions allowed such ideas to fester in the first place. From here, Marcuse arrives at a conclusion which establishes a precedent for resistance; tolerance has and should never be a privilege to be granted. In fact, tolerance has always been a historic struggle between partisan and ideological efforts. Returning to Marcuse's example, this means we cannot afford to tolerate Nazis and Jews equally (Marcuse, 32).

After establishing the partisan nature of the struggle for tolerance, Marcuse warns that the assumption of a neutral institution becomes ever more dangerous. The reason for this is that the presupposition of equality before equity enables the political enemies of the Left, who are also enemies to a society free from suffering, to go unnoticed in their control. As Marcuse puts it, the problem with gaining liberty, and thus self-determination and autonomy, is that it cannot be achieved by looking for compromise between every individual and amongst every competitor in society. It's not a matter of finding self-determination in the grey area between freedom and law, between general and individual interest, or between common and private gain within the confines of *establishment* (Marcuse, 37) because the establishment is already rigged. Generally, the function and value of tolerance in any given society depends on how well the society practices impartiality. Tolerance is often seen as a mechanism for arriving at the truth, but the fact that it is subject to confounding criteria means that the objective truth is usually obfuscated. In short, tolerance can only be an end in itself in a world where everyone begins at point zero because the very divisions between ruler and ruled, lords and peasants, and sheriffs and victims (Marcuse, 35) make it impossible to treat individuals equally. It must also assume that no real or alleged enemy is incentivized to sow the seeds of military violence and destruction in the populace. Until

these conditions are met, the conditions are tolerance are fixed in a state of institutionalized inequality (Marcuse, 35). This, however, does not appear as a problem because it is in adherence to a constitutional equality which does not care for the antagonisms found in the class structure of society.

In this sort of society, tolerance is by default extended to the legalized violence enacted by the police, the military, or other armed forces that disproportionately harm the underprivileged and marginalized, both domestically and abroad. Dually, tolerance is granted to those of privileged positions who hold the predominant interests of the upper echelon in mind. The end result is that authorities in the fields of education, morals, and psychology have a clear bias against “juvenile delinquency” (Marcuse, 34), perhaps strongly condemning the student and counter-cultural movements on the 1960’s that Habermas was so involved in. On the flip side, those same authorities are either complicit or openly support the proud presentation, in word, action, or research, of missiles, bombs, and other weapons of mass destruction- what Marcuse calls the “mature delinquency” of an entire civilization. In context, the paranoia of a Western Bloc in the midst of the Cold War led to military research in support of intervention in Vietnam. Specifically, university administration appealed to academic freedom in order to conduct research on high-altitude imaging meant to increase the effectiveness of bombings over North Vietnam (Marcuse, 33). It is for both these reasons that Marcuse’s work resonated so well in the states during these years.

Especially in the United States, the formation of public opinion goes hand in hand with the monopolistic or oligopolistic accumulation of capital. If you want a shot at influencing the conversation in any meaningful capacity, you need the dollars to back it up. Regrettably, this is something the Left cannot deliver on, at least nowhere near the cap that the Right can, due to

their close connections with the economic elite (Marcuse, 56). It is also in this fashion that free competition and intellectual exchange are a farce. Without the required purchasing power, the Left is excluded from access to the media and its communication facilities, meaning the message cannot reach the majority. Internally, there is also a struggle at hand. Recalling the favoritism of class structure, the pressures of this society coagulate and forms a whole. In the same way that a radical evil becomes something good, the real conflict that exists between the laborer and his management, between common consumer and producer, and between intellectual and employer (Marcuse, 40) is nullified under the pretenses of improvement “in the normal course of events.” Under these circumstances, the downtrodden are powerless and look unreasonable if they seek solutions that are in any way subversive. This, in essence, spells doom for acts of resistance that continue to operate by the rules of the game (Marcuse, 35).

Within a repressive society, progressive movements are under the constant threat of being co-opted by the establishment, which will often times be framed as a sanctimonious gesture of goodwill. In reality, this merely diffuses the urgency and intensity of an otherwise radical front, and by assimilating into the very institutions which one seeks to uproot, the effort will more often than not be dissolved. Alternatively, Marcuse proposes that we must *create* a society in which man is no longer beholden to the institutions which determine the “correct” path to self-determination from the get-go (Marcuse, 37). With that being said, the process will not be easy as it will also require an entire reframing of how opinionating works. Firstly, Marcuse says that one must cast aside their indecisive subjectivity in favor of an objective truth that recognizes his partisan connections. The easier part is recognizing the passive tolerance of entrenched attitudes even when their harmful effects on man and nature is clear as day- basic empiricism (Marcuse, 35). The harder part comes when talking about the active tolerance that is granted

indiscriminately to the Left as well as to the Right, to factions of humanity as well as to factions of inhumanity, to movements of virtue as well as to movements of evil. Marcuse calls this non-partisan form of tolerance “abstract” because it claims a position of neutrality – but in doing so it chooses the side of established discrimination de facto. People choose to believe the pure tolerance of sense and nonsense as a result of the democratic rationalization that nobody is in possession of an objective truth and thus capable of differentiating between good and bad (Marcuse, 41). Consequently, all opinions must be placed on the pedestal for “the people” to decide, but Marcuse has already explained its ineffectiveness due to the loaded nature of the establishment, i.e., invalidation within the democratic process itself. People are not capable of deliberating on the basis of knowledge, they don’t have access to clear information, and their evaluations aren’t made of their own autonomy (Marcuse, 41). For me, a most recent example to do with this matter is the discussion on vaccine misinformation following the pandemic. Absolutists will often make it their point that someone has the right not to be deplatformed even if they are incorrect, because they have the right to free speech. However, given Marcuse’s breakdown, there is a problem with this statement. It presupposes that whatever opinion someone has and chooses to share is the result of their own earnest and intellectual endeavors, which is often times not the case. In all likelihood, a pundit with very partisan interests captured that person’s online algorithm and took hold of all the information that passes in their feed, which ultimately led to their current position on the vaccine. Back to the argument, it wouldn’t make sense to call what the anti-vaxxer arrived at a product of free speech, because it wasn’t “free” to begin with.

What this repressive tolerance guarantees is a world without proper dissent. It does so by setting the conditions on an idea that the radical minority needs to comprehend in order to build a

strong enough bulwark, and that is violence. Marcuse writes that in order to properly discuss tolerance, one needs to re-examine the issue of violence and how people perceive violent and non-violent action (Marcuse, 46). Currently, people tend to have a reflex against violence though it prevails in even the most advanced centers of civilization. In historical and contemporary contexts, it has served the police, the defenders of metropolitan freedom, as a cudgel against minorities in the “backward countries” as well as in the mental institutions and prisons. But as expected, tolerance of violence and non-violence is not granted equally. For the weak, non-violence goes beyond an expectation, it is a necessity (Marcuse, 46). To make any attempt at retaliation is to fulfill the fear of sympathizers who will justify that initial violence. This attitude, Marcuse states, is only serving the cause of actual violence because it weakens protest against it and normalizes its deliverance. Alas, the tolerance which a thriving society needs will not be found by looking to the powers above; it can, supported by a continuous and collective effort, be claimed by a combative underclass that is vigilant of political activities and aggressively intolerant of suppressive rigidity.